

BUYER PORTAL · PRE-SALE MATERIALS

Buyer Portal Disclaimer & Access Terms

These terms govern access to the SHER Buyer Portal and all property marketing and pre-sale materials contained therein. By accessing the portal you confirm your acceptance of these terms.

1. Pre-Sale Status

All information in the SHER Buyer Portal relates to a residential development project that is currently in the pre-construction planning phase. As at the date of these terms, planning permission from the Development Control Authority ("DCA") of Saint Lucia under the Physical Planning and Development Act Cap. 5:12 has not been granted. Nothing in the portal materials constitutes:

- A binding offer for sale of any property;
- A Sale and Purchase Agreement or any part thereof;
- A confirmed reservation of any specific residential unit;
- A representation that any particular unit will be available on the terms or at the price indicated.

All pricing, unit availability, design specifications, and development timelines are subject to change without notice prior to execution of a formal Sale and Purchase Agreement.

2. Design, Specification & Materials

All architectural renderings, images, floor plans, specifications, materials descriptions, and design intent documents are design intent documents only. They represent the current design vision of Safeport Security Services Limited and its appointed architects and are not construction drawings or approved technical documents. Final designs, specifications, and materials:

- Are subject to DCA approval, structural engineering sign-off, and applicable building regulations;
- May change as a result of planning conditions, structural requirements, or site conditions;
- Will be confirmed in the Sale and Purchase Agreement and accompanying specification schedule.

No item of specification, finish, material, or equipment named in marketing materials is guaranteed to form part of the final delivered residence unless confirmed in writing in the Sale and Purchase Agreement.

3. Pricing

All pricing indications are preliminary and indicative only. Prices are denominated in United States Dollars (USD) unless otherwise stated. Final pricing will be confirmed in the formal Sale and Purchase Agreement. Exchange rate risk between USD and any other currency is the buyer's own. Safeport Security Services Limited makes no representation as to the future exchange rate between USD and XCD or any other currency. Stamp duty, legal fees, ALHL fees, and other transaction costs are additional to the purchase price and are the buyer's responsibility.

4. Alien Landholding Licence — Foreign Buyers

Under the Alien Landholding (Licensing) Act No. 1 of 2020, non-Saint Lucian citizens (and companies in which non-nationals hold a majority interest) must obtain an Alien Landholding Licence ("ALHL") before completing any acquisition of land or property in Saint Lucia. Buyers should be aware that:

- The ALHL is property-specific and is issued at the discretion of the Government of Saint Lucia;

- The ALHL application requires a Certificate of Eligibility; licence fees are charged by the Government;
- Processing timelines may vary and are outside the control of Safeport Security Services Limited;
- Safeport Security Services Limited will provide introductory guidance on the ALHL process but does not provide legal advice and is not responsible for ALHL applications or outcomes;
- All foreign buyers must engage independent legal counsel qualified to practice in Saint Lucia for the ALHL application.

5. Stamp Duty & Transaction Costs

Buyers are advised of the following indicative transaction costs under Saint Lucia law (current rates; buyers must confirm current rates with the Inland Revenue Department and their Saint Lucia solicitor):

- **Stamp duty (buyer):** 2% of transaction value (Saint Lucia nationals), or at applicable rate for non-nationals;
- **Vendors tax:** payable by the vendor — 10% of transaction value for non-nationals; Saint Lucia nationals are generally exempt. The applicable rate depends on the vendor's status at time of sale;
- **Legal fees:** buyer's and vendor's legal costs are each typically 1–3% of transaction value;
- **ALHL licence fee:** applicable to non-national buyers — fees are set by the Government of Saint Lucia;
- **Registration fees:** payable to the Land Registry of Saint Lucia on title transfer.

All rates are subject to change by the Government of Saint Lucia without notice.

6. Tourism Development Act — Rental Pool Participants

Under the Tourism Development Act No. 1 of 2024, residential units that participate in a rental pool programme may be classified as tourism accommodation. Owners who participate in the SHER rental pool programme may accordingly be subject to registration and certification requirements under the Act. Safeport Security Services Limited will inform rental pool participants of any applicable requirements. Buyers should obtain independent legal advice on the implications of the Tourism Development Act for their specific situation.

7. Rental Income

Any rental income projections, occupancy estimates, or yield indications provided in the portal or in conversations with SHER representatives are illustrative only and are based on assumptions that may not be realised. They do not constitute a guarantee, representation, or warranty of rental income. Actual rental income will depend on occupancy rates, seasonal demand, market conditions, management performance, and other factors outside the control of Safeport Security Services Limited.

8. Reservation Process

No residential unit at SHER Sanctuary is reserved or held for any buyer until:

1. A formal Reservation Agreement has been signed by both the buyer and Safeport Security Services Limited; and
2. The reservation deposit (as specified in the Reservation Agreement) has been received by Safeport Security Services Limited in cleared funds.

Prior discussions, portal access, enquiry forms, and expressions of interest do not constitute a reservation or create any legal obligation on Safeport Security Services Limited to sell, or on the buyer to purchase, any unit. The Reservation Agreement will set out the terms on which the deposit is refundable or non-refundable.

9. No Legal or Financial Advice

Safeport Security Services Limited does not provide legal advice, financial advice, mortgage advice, or tax advice. All buyers are strongly advised to obtain independent professional advice from appropriately qualified advisors before signing any agreement or making any payment.

10. Governing Law & Jurisdiction

These terms and all matters relating to the portal and the sale of SHER residences are governed by the laws of Saint Lucia. Any dispute arising from or in connection with these terms or the portal materials shall be subject to the exclusive jurisdiction of the courts of Saint Lucia.

Contact: For enquiries relating to these terms or the buyer process, contact bookings@shersanctuary.com. These terms are effective as at 10 July 2026.